

recordings or were, in fact, subject to any recordings. However, that alone is not going to support lack of damages. To make a poor analogy, if a party was allowed to swim in a tank with a dangerous shark, the absence of a bite mark would not be proof that damages were lacking. Certainly, the damages would be *different* where there was direct interaction with the shark. However, even without direct interaction, emotional distress would be a consideration. Here, there is evidence to create an issue as to whether the locker room, in which the class had a reasonable expectation of privacy and where they were in various states of undress, had been under secret surveillance and recording by Riden. Similarly, distress – as pleaded – appears at issue.

18. *Berreyes v. So. Cal. Gas Company, et al*, Case No. CIVSB2207291
Motion for Final Approval of Class Action Settlement
7/27/26, 1:30 p.m., S-17

The Court would **GRANT**.

Here, Plaintiff initially filed a putative wage-and-hour class action in 2022 in the Superior Court of Stanislaus County. That matter alleged wage-and-hour violations relating to (1) minimum wages; (2) overtime; (3) meal periods; (4) rest breaks; (5) wage timeliness; (6) final pay; (7) reimbursements; (8) reporting time pay; and (9) accurate wage statements; as well as a claim for (10) violation of the unfair competition law (UCL). Notably the UCL claim is underpinned by the purported wage-and-hour violations. That matter was removed to federal court. Additionally, Plaintiff filed a notice letter with the Labor and Workforce Development Agency (LWDA) on January 28, 2022, in anticipation of Private Attorneys General Act (PAGA) representative action. He filed this matter as a PAGA claim for civil damage on April 6, 2022. On July 22, 2022, *this* matter was removed to federal court. On August 24, 2022, however, the District Court granted a party stipulation to consolidate the matters and remand it back to the Superior Court of San Bernardino County.

During the course of litigation, Plaintiff sought and received extensive discovery, including a substantial sampling of time and payroll records. Plaintiff also received handbooks and other policy documents. Thereafter, on September 11, 2024, the parties engaged in a full-day, arms-length mediation with Lisa Klerman, an experienced neutral. While the case did not settle at that session, the parties eventually reached settlement with the help of a mediator's proposal. The Settlement was memorialized in long form by June of 2025.³ Notice of the settlement was apparently sent to the LWDA on February 18, 2025.

³ An Amendment to the settlement was entered by November of 2025.

Plaintiffs successfully moved for Preliminary Approval of the Settlement on January 28, 2026. Thus, as preliminary matter, this Court found the total settlement amount of \$4,880,000.00 to be fair, reasonable, and adequate given the strength of the Plaintiff's case and the risks involved in litigation. Adequate discovery and investigation had occurred, and there was no evidence of fraud or collusion.

There are 2,923 class members and 2,923 PAGA aggrieved employees. (Hernandez Decl., ¶¶5-6.) Notices were mailed on March 27, 2026. (Hernandez Decl., ¶7.) Forty-nine notices were initially returned after mailing; however, forty-four were re-mailed after skip-tracing efforts. (*Id.*, ¶¶8-9.) Ultimately, five notices were deemed undeliverable. (*Id.*, ¶10.) As of the date of the administrator's declaration, there were twenty-nine requests for exclusion. (*Id.*, ¶11.) Thus, there are 2,894 *participating* class members. There were no objections and no workweek disputes are cited. (*Id.*, ¶12.) Given the size and scope of the class, even with the exclusions, the participation rate is robust.

Statement of the Law

Settlement of a class action requires court approval. (Rules of Court, rule 3.769.) The moving party must demonstrate that the settlement is "fair, adequate and reasonable." (*Kullar v. Foot Locker Retail* (2008) 168 Cal.App.4th 116, 126.) The court has "broad discretion in making this determination." (*In re Microsoft I-V Cases* (2006) 135 Cal.App.4th 706, 723.) Relevant factors may include "the strength of the plaintiffs' case, the risk, expense, complexity and likely duration of further litigation, the risk of maintain class action status through trial, the amount offered in settlement, the extent of discovery completed and the stage of the proceedings, the experience and views of counsel, the presence of a governmental participant, and the reaction of the class members to the proposed settlement." (*Dunk v. Ford Motor Co.* (1996) 48 Cal.App.4th 1794, 1801.) This list of factors "is not exhaustive and should be tailored to each case." (*Ibid.*) The court may "engage in a balancing and weighing of factors depending on the circumstances of each case." (*Wershba v. Apple Computer, Inc.* (2001) 91 Cal.App.4th 224, 245, overruled on other grounds.)

"Although the court gives regard to what is otherwise a private consensual agreement between the parties, the court must also evaluate the proposed settlement agreement with the purpose of protecting the rights of the absent class members who will be bound by the settlement." (*Wershba, supra*, 91 Cal.App.4th at p. 245, quoting *Dunk, supra*, 48 Cal.App.4th at p. 1801.) "The court must therefore scrutinize the proposed settlement agreement to the extent necessary to 'reach a reasoned judgment that the agreement is not the product of fraud or overreaching by, or collusion between, the negotiating parties, and that the settlement, taken as a whole, is fair, reasonable and adequate to all concerned.'" (*Ibid.*, quoting *Officers for Justice v. Civil Service Com'n* (9th Cir. 1982) 688 F.2d 615, 625.) The settlement is entitled to "a presumption of fairness . . . where: (1) the settlement is reached through arm's-length bargaining; (2) investigation and discovery are sufficient to allow counsel and the court to act intelligently; (3) counsel is experienced in similar litigation; and (4) the percentage of objectors

is small.” (*Kullar v. Foot Locker Retail* (2008) 168 Cal.App.4th 116, 128, quoting *Dunk v. Ford Motor Co.* (1996) 48 Cal.App.4th 1794, 1802.)

Summary of the Proposed Class Settlement

The proposed final settlement terms are largely in line with those approved preliminarily: Defendants will pay a gross, non-reversionary settlement amount of \$4,880,000.00, from which will be deducted (1) \$1,626,666.67 for Class Counsel’s attorneys’ fees (1/3rd the total); (2) costs of \$29,632.28; (3) Plaintiff’s enhancement fee of \$10,000.00; (4) claims administration fees of \$22,950.00; and (5) PAGA penalties of \$244,000.00 (of which \$183,000.00, or 75%, will go to the LWDA and \$61,000.00, or 25%, will go to the aggrieved employees).

This will leave a wage-and-hour only net settlement amount of a non-reversionary \$2,946,751.05. This amount would be split by the participating class of 2,894 employees in proportionate shares determined by number of workweeks within the Settlement Class Period. The average per class member would be \$,1018.23.

Given the 2,923 PAGA aggrieved employees, the average PAGA payout would be \$20.87.

Tentative

The Court finds no evidence of fraud or collusion. Class Counsel are able, experienced, and well-qualified to represent the class. The representative is also well qualified to represent. The settlement was reached through an arms-length negotiation. The Court incorporates the reasons for the preliminary approval into its ruling by this reference and would:

1. Certify the Class for settlement.
2. Approve the settlement as fair and reasonable, finding that class members were given notice, advised of their rights and to object or exclude themselves.
3. Appoint Louis Berreyes as Class Representative and approve his service award of \$10,000.00.
4. Appoint James Hawkins APLC as Class Counsel for settlement purposes.
5. Approve administrative expenses, as stated, to ILYM Group, Inc. at \$22,950.00.
6. Approve the attorneys’ fees as stated at \$1,626,666.67, with costs of \$29,632.28. The hours presented support the attorneys’ fees in line with a *robust* multiplier sufficient to reward risk and complexity. (See Hawkins Decl., ¶¶40-47.)
7. Direct the clerk to enter the Court’s order as final judgment.
8. Reserve continuing jurisdiction for the purposes of implementing, enforcing, or administering the Settlement or enforcing the terms of the Judgment.
